Program Name: CHEESECAKE FACTORY **Program ID :** PRG-1009436

Operator: CHEESECAKE FACTORY

Effective Dates: August 1, 2015 through July 31, 2016 **Price Type:** Rebate

We are pleased to confirm pricing information for orders placed between August 1, 2015 and July 31, 2016 for the below named operators. During this time period, orders placed by operators through your authorized distributor will be priced by Kraft to your authorized distributor at a maximum of the rebate type for the product(s) found in the pricing table (showing prices, allowance and contract volume).

The prices do not include any distributor mark-up or distributor surcharges. Distributor mark-ups and other distributor charges are to be negotiated solely between the distributor and operator.

This letter deals with pricing, compliance and confidentiality matters only and is not to be construed as a guarantee of product availability or supply.

Sincerely,

Howard Gasser

Kraft Representative

List of Authorized Operators

Operator Number	Operator Name	Address
0200151890	CHEESECAKE FACTORY	26901 MALIBU HILLS RD CALABASAS HILLS CA 91301-5354

List of Authorized Distributors

Customer Number	Company Name	Address
0200828036	HANSEN DIST GRP-PEARL CITY	96-1282 WAIHONA ST PEARL CITY HI 96782-1968
0200159864	INTERNATIONAL FOODS INC	2401 POLICE CENTER DR STE 240 PLANT CITY FL 33566-7139
0200990579	NON COMMERCIAL HQ TRADE	1 KRAFT CT GLENVIEW IL 60025-5092
0200018507	SYSCO ARIZONA	611 S 80TH AVE TOLLESON AZ 85353-4025
0200032250	SYSCO ATLANTA	2225 RIVERDALE RD COLLEGE PARK GA 30337-5111
0200039452	SYSCO BALTIMORE	8000 DORSEY RUN RD JESSUP MD 20794-9482
0200013872	SYSCO BOSTON	99 SPRING ST PLYMPTON MA 02766-3401
0200757424	SYSCO CENTRAL ALABAMA	1000 SYSCO DR CALERA AL 35040-4992
0200034242	SYSCO CENTRAL FLORIDA	200 W STORY RD OCOEE FL 34761-3004
0200044899	SYSCO CENTRAL TEXAS	1260 SCHWAB RD NEW BRAUNFELS TX 78132
0200039051	SYSCO CHICAGO	250 WIEBOLDT DR DES PLAINES IL 60016-3100
0200056560	SYSCO CINCINNATI	10510 EVENDALE DR CINCINNATI OH 45241-2516
0200059147	SYSCO CLEVELAND	19300 CLEVELAND PKWY DR CLEVELAND OH 44108
0200035055	SYSCO DALLAS	800 TRINITY DR LEWISVILLE TX 75056
0200017860	SYSCO DENVER	5000 BEELER ST DENVER CO 80238-2975
0200053538	SYSCO DETROIT	41600 VAN BORN RD CANTON MI 48188-2746
0200785948	SYSCO E WISCONSIN	1 SYSCO DR JACKSON WI 53037-9226
0200010707	SYSCO HOUSTON	10710 GREENS CROSSING BLVD HOUSTON TX 77038-2716
0200016200	SYSCO IDAHO	5710 PAN AM AVE BOISE ID 83716-9612
0200017075	SYSCO INTERMOUNTAIN	9494 PROSPERITY RD WEST JORDAN UT 84081-6205

Customer Number	Company Name	Address
0200022963	SYSCO IOWA	1 SYSCO DR ANKENY IA 50021-3911
0200045764	SYSCO KANSAS CITY	1915 KANSAS CITY RD OLATHE KS 66061
0200554040	SYSCO KFC HALLSMITH	380 S WORCESTER ST NORTON MA 02766-3401
0200895249	SYSCO LAS VEGAS	6201 E CENTENNIAL PKWY LAS VEGAS NV 89115-1775
0100021042	SYSCO LONG ISLAND LLC	199 LOWELL AVE CENTRAL ISLIP NY 11722-3863
0200033946	SYSCO LOS ANGELES	20701 CURRIER RD WALNUT CA 91789-2904
0200080858	SYSCO METRO NEW YORK LLC	20 THEODORE CONRAD DR JERSEY CITY NJ 07305-4614
0200018858	SYSCO MINNESOTA	2400 COUNTY ROAD J SAINT PAUL MN 55112-4503
0200025551	SYSCO NASHVILLE	1 HERMITAGE PLZ NASHVILLE TN 37209-1002
0200055040	SYSCO OKLAHOMA	1350 W TECUMSEH RD NORMAN OK 73069-8200
0200020076	SYSCO PHILADELPHIA	666 PACKER AVE PHILADELPHIA PA 19148-5304
0200396989	SYSCO RALEIGH	1032 BAUGH RD SELMA NC 27576-9105
0100026939	SYSCO RIVERSIDE	15750 MERIDIAN PKWY RIVERSIDE CA 92518
0200779886	SYSCO SACRAMENTO	7062 PACIFIC AVE PLEASANT GROVE CA 95668-9731
0200975343	SYSCO SAN DIEGO	12180 KIRKHAM RD POWAY CA 92064-6879
0200179554	SYSCO SAN FRANCISCO	5900 STEWART AVE FREMONT CA 94538-3134
0200990655	SYSCO SE FLORIDA	1999 HIGHWAY 710 RIVIERA BEACH FL 33404-7005
0200022970	SYSCO SEATTLE	22820 54TH AVE S KENT WA 98032-1813
0200205055	SYSCO ST LOUIS	3850 MUELLER RD SAINT CHARLES MO 63301-8042
0200018808	SYSCO SYRACUSE	ROUTE 173 N WARNERS NY 13164
0200330160	SYSCO WEST FLORIDA	3000 69TH ST E PALMETTO FL 34221-8440
0200880687	Y HATA & COMPANY LTD	285 SAND ISLAND ACCESS RD HONOLULU HI 96819-2227

PRG-1009436 - Fixed Price

SCC#	Product Description	Fixed Price Pays To: Distributor	
00210006430100	KR 4/1GA MAYO LIGHT	$28.79 / CS	
00544000000300	A1 24/5Z SAUCE	$34.33 / CS	
00544000000325	A1 24/5Z SAUCE	$34.33 / CS	$34.33 / CS
00544000002500	GP 12/8Z MSTRD DIJON	$20.16 / CS	
00544000002512	GP 12/8Z DIJON	$20.16 / CS	
00544000003800	GREY POUPON 6/48Z MUST DIJON	$56.21 / CS	
00544000005200	GP 12/10Z SQZ DIJON SQZ	$24.70 / CS	
00544000005500	GP /24Z/6 DIJON MSTRD	$29.16 / CS	
00544000005512	GP 6/24Z DIJON	$29.16 / CS	
06006990009200	7Z JP MM CREME 6	$7.11 / CS	

PRG-1009436 - Rebate

SCC#	Product Description	HQ Rebate Pays To: Operator	
00210006430100	KR 4/1GA MAYO LIGHT	$0.10 / CS	
00544000000300	A1 24/5Z SAUCE	$3.00 / CS	
00544000000325	A1 24/5Z SAUCE	$3.00 / CS	$3.00 / CS
00544000002500	GP 12/8Z MSTRD DIJON	$1.98 / CS	
00544000002512	GP 12/8Z DIJON	$1.98 / CS	
00544000003800	GREY POUPON 6/48Z MUST DIJON	$1.98 / CS	
00544000005200	GP 12/10Z SQZ DIJON SQZ	$2.03 / CS	
00544000005500	GP /24Z/6 DIJON MSTRD	$1.98 / CS	
00544000005512	GP 6/24Z DIJON	$1.98 / CS	

RATE INFORMATION
The contract rate per item will be stated as follows:
I. Headquarter Rebate defined as a percent unit basis.

DETAILS
I. This pricing confirmation applies to all net purchases of eligible products by qualified locations for the time periods specified above. Net purchases are defined as gross sales dollars less returns, credits, cash discounts, and taxes. Invoices not paid within terms or invoices on which unauthorized deductions are taken will not be included in net purchases. Net purchases do not include orders where the Contractee does not take title to the product.
II. Headquarter Rebate (%) – Selection for the unit basis value is customer invoice price.
III. Supporting Documentation is required for all Allowance requests:
> Distributor Name with company location and Contract Number
> Kraft contract number
> Shipment dates for each sales transaction
> Customer name, Distributor customer number, rate of rebate by product along with complete unit address information
> Kraft product code number or GTIN number
> Description of product item pack, size, item brand & UOM
> Total cases purchased
> Requested case rates per product and total rebate dollar amount per product
IV. Kraft Foodservice reserves the right in its discretion to amend, revise, or terminate this pricing confirmation at any time upon 15 days' notice.
V. This pricing confirmation does not automatically renew and is only applicable to the dates stated above.

PAYMENT CALCULATION & SETTLEMENT
I. Kraft will review Headquarter Rebate submissions for errors. Kraft may approve or deny submissions in its reasonable discretion.
II. Headquarter Rebate (%): The calculation will be determined by multiplying the Headquarter Rebate % by the customer invoice price.

CLAIM SUBMISSION
I. Billback claims should be directed to Blacksmith Applications. Please reference the Contract ID # above on claim submission.
II. Electronic submission is the preferred method for Billback claim settlement. Blacksmith Applications can accept electronic data transmission via EDI, FTP retrieval or email. Our file preference would be EDI, formatted text delimited, Excel, or CSV formats. If you are interested in electronic claims submission please send email to the address listed below.
III. Please include the Contract ID # in all communications
IV. Billback claims sent via email should be directed to the following address: kraftclaims@blacksmithapps.com
OR mail paper claims to:
Kraft Foods Group – Claims Processing
P. O. Box 15887
Pittsburgh, PA 15244
V. Collection of Allowances and/or Rebates: Subject to any provision to the contrary of these terms, Kraft will only pay claims for eligible goods sold within 365 days of the submitted date.

The information transmitted is intended only for the person or entity to which it is addressed and may contain confidential and/or privileged material. Any review, retransmission, dissemination or other use of, or taking of any action in reliance upon, this information by persons or entities other than the intended recipient is prohibited. If you received this in error, please contact the sender and delete the material from all computers.